

COMMITTEE ON EDUCATION  
SENATE AMENDMENTS TO H.B. 2621  
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 7, article 4, Arizona Revised  
3 Statutes, is amended by adding section 15-768, to read:

4 15-768. Pupils residing in unorganized territory; definitions

5 A. THE PARENT OF A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY  
6 MAY REQUEST A CHILD FIND SCREENING, A SPECIAL EDUCATION EVALUATION OR  
7 ENROLLMENT OF THE PUPIL IN THE ADJOINING SCHOOL DISTRICT THAT IS  
8 GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE. A SCHOOL DISTRICT THAT  
9 RECEIVES A REQUEST PURSUANT TO THIS SUBSECTION IS RESPONSIBLE FOR ALL  
10 CHILD FIND ACTIVITIES FOR THAT PUPIL. IF A PARENT OF A PUPIL WHO IS A  
11 CHILD WITH A DISABILITY AS DEFINED IN SECTION 15-761 REQUESTS ENROLLMENT  
12 OF THE PUPIL IN A SCHOOL DISTRICT PURSUANT TO THIS SUBSECTION, THE SCHOOL  
13 DISTRICT IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION  
14 TO THE PUPIL.

15 B. EACH PROGRAM THAT PROVIDES EARLY INTERVENTION SERVICES PURSUANT  
16 TO PART C OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20 UNITED  
17 STATES CODE SECTIONS 1401 THROUGH 1485) TO PUPILS WHO RESIDE IN  
18 UNORGANIZED TERRITORIES SHALL INITIATE THE PROCESS FOR TRANSITIONING THE  
19 PUPILS FROM PART C TO PART B OF THE INDIVIDUALS WITH DISABILITIES  
20 EDUCATION ACT BY NOTIFYING THE DEPARTMENT OF EDUCATION AND REFERRING THE  
21 PUPIL TO THE ADJOINING SCHOOL DISTRICT THAT IS GEOGRAPHICALLY CLOSEST TO  
22 THE PUPIL'S RESIDENCE FOR A PART B EVALUATION AND TRANSITION AT LEAST  
23 NINETY DAYS BEFORE THE PUPIL'S THIRD BIRTHDAY. IF A PROGRAM DETERMINES  
24 THAT A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY IS ELIGIBLE FOR EARLY  
25 INTERVENTION SERVICES PURSUANT TO PART C OF THE INDIVIDUALS WITH  
26 DISABILITIES EDUCATION ACT MORE THAN FORTY-FIVE DAYS BUT FEWER THAN NINETY  
27 DAYS BEFORE THE PUPIL'S THIRD BIRTHDAY, THE PROGRAM SHALL INITIATE THE  
28 PROCESS FOR TRANSITIONING THE PUPIL FROM PART C TO PART B OF THE

1 INDIVIDUALS WITH DISABILITIES ACT PURSUANT TO THIS SUBSECTION AS SOON AS  
2 POSSIBLE, CONSISTENT WITH FEDERAL LAW.

3 C. IF THE ADJOINING SCHOOL DISTRICT THAT IS GEOGRAPHICALLY CLOSEST  
4 TO THE RESIDENCE OF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION  
5 CONDUCTS A SPECIAL EDUCATION EVALUATION OF THE PUPIL AND DETERMINES  
6 THAT THE PUPIL IS ELIGIBLE FOR SPECIAL EDUCATION AND RELATED SERVICES  
7 UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT, THE  
8 PUPIL'S PARENTS MAY REQUEST ENROLLMENT OF THE PUPIL IN THE SCHOOL DISTRICT  
9 AT ANY TIME AND THE SCHOOL DISTRICT SHALL INFORM THE PUPIL'S PARENT THAT  
10 THE PUPIL'S PARENT MAY REQUEST ENROLLMENT OF THE PUPIL. ON RECEIPT OF A  
11 REQUEST FOR ENROLLMENT PURSUANT TO THIS SUBSECTION, A SCHOOL DISTRICT  
12 SHALL PREPARE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION FOR THE  
13 PUPIL AS PRESCRIBED BY SECTION 15-825 AND OFFER A FREE APPROPRIATE PUBLIC  
14 EDUCATION TO THE PUPIL.

15 D. IF A PUPIL RESIDES IN AN UNORGANIZED TERRITORY AND EITHER IS  
16 PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE  
17 FOLLOWING APPLY:

18 1. THE PUPIL RETAINS THE FOLLOWING RIGHTS:

19 (a) THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,  
20 INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR  
21 ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION  
22 ACT.

23 (b) THE RIGHT TO EQUITABLE SERVICES UNDER PROPORTIONATE SHARE  
24 FUNDING PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130  
25 THROUGH 300.144.

26 2. THE SCHOOL DISTRICT THAT IS RESPONSIBLE FOR ALL CHILD FIND  
27 ACTIVITIES AND FOR CONDUCTING A SPECIAL EDUCATION EVALUATION FOR THE PUPIL  
28 IS:

29 (a) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL  
30 THAT IS LOCATED WITHIN THE BOUNDARIES OF A SCHOOL DISTRICT, THE SCHOOL  
31 DISTRICT IN WHICH THE PRIVATE SCHOOL IS LOCATED.

32 (b) IF THE PUPIL IS PARENTALLY PLACED IN A NONPROFIT PRIVATE SCHOOL  
33 THAT IS LOCATED IN AN UNORGANIZED TERRITORY, THE ADJOINING SCHOOL DISTRICT  
34 THAT IS GEOGRAPHICALLY CLOSEST TO THE PRIVATE SCHOOL.

35 (c) IF THE PUPIL ATTENDS A HOMESCHOOL OR IS PARENTALLY PLACED IN A  
36 PRIVATE SCHOOL THAT IS NOT A NONPROFIT, THE ADJOINING SCHOOL DISTRICT THAT  
37 IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE.

38 3. IF THE PUPIL HAS BEEN FOUND TO BE ELIGIBLE FOR SPECIAL EDUCATION  
39 OR RELATED SERVICES UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES  
40 EDUCATION ACT, THE PUPIL'S PARENTS MAY REQUEST FROM THE SCHOOL DISTRICT  
41 THAT IS RESPONSIBLE FOR THE PUPIL PURSUANT TO PARAGRAPH 2 OF THIS  
42 SUBSECTION EITHER OR BOTH OF THE FOLLOWING:

43 (a) AN EVALUATION PURSUANT TO 20 UNITED STATES CODE SECTION  
44 1412(a)(3)(A).

45 (b) A MEETING TO DISCUSS EQUITABLE SERVICES AND THE DEVELOPMENT OF  
46 A SERVICE PLAN PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130  
47 THROUGH 300.144.

1 E. FOR THE PURPOSES OF THIS SECTION:

2 1. "CHILD FIND ACTIVITIES" MEANS STATE OBLIGATIONS PURSUANT TO 20  
3 UNITED STATES CODE SECTION 1412(a)(3), THE FEDERAL REGULATIONS ISSUED  
4 PURSUANT TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT AND THE RULES  
5 ADOPTED BY THE STATE BOARD OF EDUCATION RELATING TO THE IDENTIFICATION AND  
6 REFERRAL OF CHILDREN WITH DISABILITIES BY PUBLIC SCHOOLS.

7 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING  
8 PRESCRIBED IN 20 UNITED STATES CODE SECTION 1401.

9 3. "HOMESCHOOL" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-802.

10 4. "UNORGANIZED TERRITORY" HAS THE SAME MEANING PRESCRIBED IN  
11 SECTION 15-825.

12 5. "RELATED SERVICES" HAS THE SAME MEANING PRESCRIBED IN 20 UNITED  
13 STATES CODE SECTION 1401.

14 6. "SPECIAL EDUCATION" HAS THE SAME MEANING PRESCRIBED IN 20 UNITED  
15 STATES CODE SECTION 1401.

16 7. "SPECIAL EDUCATION EVALUATION" MEANS AN EVALUATION CONDUCTED  
17 PURSUANT TO SECTION 15-766 AND RULES ADOPTED BY THE STATE BOARD OF  
18 EDUCATION.

19 <<Sec. 2. Section 15-797, Arizona Revised Statutes, is amended to  
20 read:

21 15-797. Financial provisions for students in alternative  
22 education programs and alternative schools

23 A. School districts may count students for daily attendance as  
24 provided in section 15-901 who are not actually and physically in  
25 attendance in a recognized common or high school but who are enrolled in  
26 and actually and physically in attendance in an alternative education  
27 program or alternative school that is provided by any public body or  
28 private person and that meets the standards that the state board of  
29 education and the governing board prescribe for the course of study given  
30 in the common and high schools.

31 B. The governing board of a school district shall prescribe  
32 procedures for verifying the attendance of students enrolled in an  
33 alternative education program or alternative school that is provided by  
34 any public body or private person.

35 C. The governing board may pay for the cost of educating students  
36 as provided in this article not to exceed the cost per student count as  
37 provided in section 15-824, subsection [G][E].

38 D. School districts operating alternative education programs or  
39 alternative schools pursuant to this section and charter schools operating  
40 on approved alternative calendars pursuant to section 15-183 shall comply  
41 with the annual hours of instruction requirement pursuant to section  
42 15-901.>>

43 Sec. 3. Section 15-816, Arizona Revised Statutes, is amended to  
44 read:

45 15-816. Definitions

46 In this article, unless the context otherwise requires:

1        1. "Nonresident pupil" means a pupil who resides in this state and  
2 who is enrolled in or is seeking enrollment in a school district other  
3 than the school district in which the pupil resides.

4        2. "Open enrollment" means a policy that is adopted and implemented  
5 by a school district governing board to allow resident transfer pupils to  
6 enroll in any school within the school district, to allow resident pupils  
7 to enroll in any school located within other school districts in this  
8 state and to allow nonresident pupils to enroll in any school within the  
9 district pursuant to section 15-816.01.

10       3. "Resident pupil" means a pupil WHO MEETS ANY OF THE FOLLOWING:

11       (a) Whose residence is within the attendance area of a school.

12       (b) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION  
13 15-825 AND WHOSE RESIDENCE ADJOINS A BOUNDARY OF THE SCHOOL DISTRICT.

14       (c) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION  
15 15-825 AND WHOSE RESIDENCE IS LOCATED ON TRIBAL LAND.

16       (d) WHO IS PLACED AS DESCRIBED IN SECTION ~~[15-825, SUBSECTION B]~~  
17 [15-823, SUBSECTION C].

18       4. "Resident school" means a school that is within the designated  
19 attendance area in which a pupil resides.

20       5. "Resident transfer pupil" means a resident pupil who is enrolled  
21 in or seeking enrollment in a school that is within the school district  
22 but outside the attendance area of the pupil's residence.

23       <<Sec. 4. Section 15-823, Arizona Revised Statutes, is amended to  
24 read:

25       15-823. Admission; residents of other school districts;  
26 nonresidents of this state; tuition; definition

27       A. Except as provided in subsections B, [C,] D, E, F, G[,] [and] H  
28 [AND I] of this section, children of nonresidents of this state may be  
29 admitted on payment of a reasonable tuition fixed by the governing board.

30       B. The governing board shall admit children of nonresident teaching  
31 and research faculty of community college districts and state universities  
32 and children of nonresident graduate or undergraduate students of  
33 community college districts and state universities whose parent's presence  
34 at the district or university is of international, national, state or  
35 local benefit without payment of tuition.

36       [C. THE GOVERNING BOARD SHALL ADMIT CHILDREN WHO ARE PLACED BY A  
37 STATE PLACING AGENCY OR A COURT OF COMPETENT JURISDICTION IF THE CHILD'S  
38 PLACEMENT IS LOCATED WITHIN THE BOUNDARIES OF THE SCHOOL DISTRICT AND IS  
39 ANY OF THE FOLLOWING:

40       1. A STATE REHABILITATION OR CORRECTIONAL INSTITUTION.

41       2. A FOSTER HOME OR CHILD CARE AGENCY OR INSTITUTION THAT IS  
42 LICENSED AND SUPERVISED BY THE DEPARTMENT OF CHILD SAFETY OR THE  
43 DEPARTMENT OF HEALTH SERVICES.

44       3. A RESIDENTIAL FACILITY THAT IS OPERATED OR SUPPORTED BY THE  
45 DEPARTMENT OF ECONOMIC SECURITY OR THE DEPARTMENT OF HEALTH SERVICES.

46       4. UNDER THE SUPERVISION OF THE DEPARTMENT OF JUVENILE CORRECTIONS,  
47 A RESIDENCE PURSUANT TO THE INTERSTATE COMPACT ON JUVENILES.]

1       [C.] [D.] The governing board shall admit children who are  
2 residents of the United States but who are nonresidents of this state  
3 without payment of tuition if evidence indicates that the child's  
4 physical, mental, moral or emotional health is best served by placement  
5 with a grandparent, brother, sister, stepbrother, stepsister, aunt or  
6 uncle who is a resident within the school district, unless the governing  
7 board determines that the placement is solely for the purpose of obtaining  
8 an education in this state without payment of tuition.

9       [D.] [E.] The governing board may admit nonresident foreign  
10 students who are in exchange programs without payment of tuition or as it  
11 may otherwise prescribe.

12       [E.] [F.] Notwithstanding subsection [D][E] of this section,  
13 ~~[beginning in the 2016-2017 school year]~~ the governing board may admit the  
14 same number of nonresident foreign students who are in exchange programs  
15 and who are recipients of a J-1 visa pursuant to federal law, that is  
16 equal to the number of resident students enrolled in that local education  
17 agency who are currently participating in a foreign exchange program, as  
18 determined by the department, without the payment of tuition.

19       [F.] [G.] The governing board may admit children who are residents  
20 of the United States without payment of tuition if evidence indicates that  
21 because the parents are homeless or the child is abandoned, as defined in  
22 section 8-201, the child's physical, mental, moral or emotional health is  
23 best served by placement with a person who does not have legal custody of  
24 the child and who is a resident within the school district, unless the  
25 governing board determines that the placement is solely for the purpose of  
26 obtaining an education in this state without payment of tuition.

27       [G.] [H.] The governing board may admit children who are residents  
28 of the United States, but who are nonresidents of this state, without  
29 payment of tuition if all of the following conditions exist:

30       1. The child is a member of a federally recognized Indian tribe.

31       2. The child resides on Indian lands that are under the  
32 jurisdiction of the tribe of which the child is a member.

33       3. The area in the boundaries of the reservation where the child  
34 resides is located both in this state and in another state of the United  
35 States.

36       4. The governing board enters into an intergovernmental agreement  
37 with the governing board of the school district in another state in which  
38 the nonresident child resides. The intergovernmental agreement shall  
39 specify the number of nonresident children admitted in this state and the  
40 number of resident children that are admitted by the governing board in  
41 another state.

42       [H.] [I.] The governing board may admit children who are residents  
43 of the United States, but who are nonresidents of this state, without  
44 payment of tuition if all of the following conditions exist:

45       1. The child is enrolled in a year-round residential boarding  
46 academy located in this state specializing in intensive instruction and  
47 skill development in sports, music or acting.

1        2. The child's parents have executed a current notarized  
2 guardianship agreement covering the child while enrolled at the academy,  
3 which is a condition of enrollment at the academy and authorizes academy  
4 representatives to act on behalf of the child's parent or legal guardian  
5 in making all decisions on a daily basis as to the child's activities and  
6 needs for medical, educational and other personal issues.

7        ~~[I.]~~ ~~[J.]~~ The governing board shall charge reasonable tuition for  
8 the number of nonresident pupils who reside in another state and who are  
9 admitted by a governing board in this state pursuant to subsection ~~[G]~~~~[H]~~  
10 of this section that exceeds the number of resident pupils from this state  
11 who are admitted into a school district by the other state.

12        ~~[J.]~~ ~~[K.]~~ The governing board of a school district shall pay  
13 reasonable tuition for the number of resident pupils who reside in that  
14 school district and who are admitted by a school district in another state  
15 pursuant to subsection ~~[G]~~~~[H]~~ of this section that exceeds the number of  
16 nonresident pupils from that other state who are admitted by the governing  
17 board into that school district in this state.

18        ~~[K.]~~ ~~[L.]~~ Children admitted under this section shall be counted or  
19 not counted as resident pupils as prescribed in section 15-824,  
20 subsection D.

21        ~~[L.]~~ ~~[M.]~~ Except as provided in subsections ~~[E]~~~~[E]~~, ~~[H]~~~~[I]~~ and  
22 ~~[K]~~~~[L]~~ of this section, a school district or a charter school shall not  
23 include pupils who are not residents of this state in the district's or  
24 charter school's student count and shall not obtain state funding for  
25 those pupils.

26        [N. ON OR BEFORE JUNE 30, 2027, EACH STATE PLACING AGENCY SHALL  
27 DEVELOP A FORM FOR ATTESTING THAT A CHILD IS PLACED BY THE STATE PLACING  
28 AGENCY IN ONE OF THE PLACEMENTS DESCRIBED IN SUBSECTION C OF THIS SECTION.  
29 BEGINNING IN FISCAL YEAR 2027-2028, ON REQUEST FROM A STUDENT'S PARENT, A  
30 SCHOOL DISTRICT OFFICIAL OR A COUNTY SCHOOL SUPERINTENDENT, A STATE  
31 PLACING AGENCY SHALL PROVIDE AN ATTESTATION FORM FOR A CHILD WHO IS PLACED  
32 BY THE STATE PLACING AGENCY AND WHO IS IDENTIFIED IN THE REQUEST. A  
33 SCHOOL DISTRICT SHALL ACCEPT AN ATTESTATION FORM THAT IS PROVIDED PURSUANT  
34 TO THIS SUBSECTION AS EVIDENCE OF THE CHILD'S ELIGIBILITY FOR ENROLLMENT  
35 PURSUANT TO SUBSECTION C OF THIS SECTION. IF A STUDENT'S PARENT, COUNTY  
36 SCHOOL SUPERINTENDENT OR STATE PLACING AGENCY DOES NOT PROVIDE TO A SCHOOL  
37 DISTRICT AN ATTESTATION FORM ON ENROLLMENT OF A CHILD DESCRIBED IN  
38 SUBSECTION C OF THIS SECTION, THE SCHOOL DISTRICT MAY REQUEST AN  
39 ATTESTATION FORM FROM THE STATE PLACING AGENCY.

40        O. ON REQUEST BY THE PARENT OF A CHILD DESCRIBED IN SUBSECTION C OF  
41 THIS SECTION, A SCHOOL DISTRICT SHALL ALLOW THE CHILD TO REMAIN ENROLLED  
42 AS A RESIDENT PUPIL IN THE SAME SCHOOL REGARDLESS OF ANY SUBSEQUENT CHANGE  
43 IN THE CHILD'S RESIDENCE IF BOTH OF THE FOLLOWING CONDITIONS ARE MET:

44        1. THE CHILD IS IN ONE OF THE PLACEMENTS DESCRIBED IN SUBSECTION C  
45 OF THIS SECTION.

46        2. THE PLACEMENT IS LOCATED EITHER:

1       (a) WITHIN THE BOUNDARIES OF THE SCHOOL DISTRICT IN WHICH THE CHILD  
2 SEEKS TO REMAIN ENROLLED.

3       (b) WITHIN THE BOUNDARIES OF AN ADJOINING SCHOOL DISTRICT TO THE  
4 SCHOOL DISTRICT IN WHICH THE CHILD SEEKS TO REMAIN ENROLLED.

5       (c) IN AN UNORGANIZED TERRITORY AND THE ADJOINING SCHOOL DISTRICT  
6 THAT IS GEOGRAPHICALLY CLOSEST TO THE CHILD'S PLACEMENT IS AN ADJOINING  
7 SCHOOL DISTRICT TO THE SCHOOL DISTRICT IN WHICH THE CHILD SEEKS TO REMAIN  
8 ENROLLED.

9       P. FOR THE PURPOSES OF THIS SECTION, "STATE PLACING AGENCY" HAS THE  
10 SAME MEANING PRESCRIBED IN SECTION 15-1181.]>>

11       Sec. 5. Section 15-823.01, Arizona Revised Statutes, is amended to  
12 read:

13       15-823.01. Admission of nonresident children; services or  
14 accommodations for children with disabilities;  
15 active military duty; posting requirement;  
16 definitions

17       A. Notwithstanding any other law, a ~~pupit~~ CHILD complies with the  
18 residency requirements for school attendance in a local education agency  
19 OR FOR SERVICES OR ACCOMMODATIONS if the parent of the ~~pupit~~ CHILD is  
20 transferred to or is pending transfer to a military installation within  
21 this state while on active military duty pursuant to an official military  
22 order.

23       B. A local education agency shall accept an application for  
24 enrollment and course registration by ~~electronic~~ ANY means, INCLUDING BY  
25 ELECTRONIC MEANS OR A REMOTE APPLICATION, for a pupil who meets the  
26 requirements prescribed in subsection A of this section, including  
27 enrollment in a specific school or program within the local education  
28 agency.

29       C. The parent of a ~~pupit~~ CHILD who meets the requirement prescribed  
30 in subsection A of this section shall provide proof of ~~residence~~ RESIDENCY  
31 to the local education agency within ten days after the arrival date  
32 provided on official documentation. The parent may use the address of any  
33 of the following as proof of ~~residence~~ RESIDENCY for the purposes of this  
34 subsection:

35       1. A temporary on-base billeting facility.

36       2. TEMPORARY OFF-BASE LODGING.

37       ~~2-~~ 3. A purchased or leased home or apartment.

38       ~~3-~~ 4. Any federal government housing or off-base military housing,  
39 including off-base military housing that may be provided through a  
40 public-private venture.

41       5. ANY OTHER TEMPORARY HOUSING.

42       D. IF A SCHOOL DISTRICT IS NOTIFIED THAT A CHILD WHO MEETS THE  
43 REQUIREMENT PRESCRIBED IN SUBSECTION A OF THIS SECTION IS RECEIVING OR  
44 MIGHT BE ELIGIBLE TO RECEIVE SERVICES OR ACCOMMODATIONS, THE SCHOOL  
45 DISTRICT SHALL:

46       1. PROMPTLY COORDINATE WITH THE CHILD'S PARENTS AND THE CHILD'S  
47 PREVIOUS SCHOOL, IF ANY, PURSUANT TO SECTION 15-1911 TO ENSURE THE TIMELY

1 EXCHANGE OF RECORDS AND TO REDUCE ANY DELAYS IN THE CHILD RECEIVING  
2 COMPARABLE SERVICES OR ACCOMMODATIONS THROUGH THE SCHOOL DISTRICT OR  
3 DELAYS IN THE IMPLEMENTATION OF AN INDIVIDUALIZED FAMILY SERVICE PLAN,  
4 INDIVIDUALIZED EDUCATION PROGRAM OR SECTION 504 PLAN AS DEFINED IN SECTION  
5 15-731.

6 2. ACCEPT UNOFFICIAL RECORDS THAT ARE PROVIDED BY THE CHILD'S  
7 PARENT, PENDING VALIDATION BY THE OFFICIAL RECORDS, PURSUANT TO SECTION  
8 15-1911, ARTICLE IV, SUBSECTION A.

9 3. ON ENROLLMENT OF THE CHILD PURSUANT TO SUBSECTION B OF THIS  
10 SECTION:

11 (a) PROVIDE THE CHILD WITH SERVICES OR ACCOMMODATIONS THAT ARE  
12 COMPARABLE TO THE SERVICES OR ACCOMMODATIONS THAT ARE DESCRIBED IN THE  
13 CHILD'S PREVIOUSLY APPROVED INDIVIDUALIZED EDUCATION PROGRAM OR SECTION  
14 504 PLAN AS DEFINED IN SECTION 15-731, IN CONSULTATION WITH THE CHILD'S  
15 PARENTS, UNTIL THE SCHOOL DISTRICT CONDUCTS AN ASSESSMENT OR DEVELOPS A  
16 NEW INDIVIDUALIZED EDUCATION PROGRAM, IF APPROPRIATE.

17 (b) EITHER ADOPT AND IMPLEMENT THE CHILD'S PREVIOUSLY APPROVED  
18 INDIVIDUALIZED EDUCATION PROGRAM OR DEVELOP, ADOPT AND IMPLEMENT A NEW  
19 INDIVIDUALIZED EDUCATION PROGRAM FOR THE CHILD NOT LATER THAN THIRTY  
20 CALENDAR DAYS AFTER THE CHILD ENROLLS IN THE SCHOOL DISTRICT.

21 E. THE DEPARTMENT OF EDUCATION SHALL POST INFORMATION ON THE  
22 REQUIREMENTS OF THIS SECTION, INCLUDING REQUIREMENTS RELATING TO  
23 ELIGIBILITY AND REQUIRED DOCUMENTATION, ON THE DEPARTMENT'S WEBSITE.

24 ~~D.~~ F. For the purposes of this section:

25 1. "Active military duty" means full-time military duty status in  
26 the active uniformed service of the United States, including members of  
27 the national guard and the state military reserve on active duty orders.

28 2. "Military installation" means a base, camp, post, station, yard,  
29 center, homeport facility for any ship or other installation under the  
30 jurisdiction of the United States department of defense or the United  
31 States coast guard.

32 3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.

33 4. "SERVICES OR ACCOMMODATIONS" MEANS ANY SERVICES OR  
34 ACCOMMODATIONS THAT ARE PROVIDED THROUGH A LOCAL EDUCATION AGENCY PURSUANT  
35 TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (P.L. 91-260; 84 STAT.  
36 175; 20 UNITED STATES CODE SECTIONS 1400 THROUGH 1482), SECTION 504 OF THE  
37 REHABILITATION ACT OF 1973 (P.L. 93-112; 87 STAT. 355; 29 UNITED STATES  
38 CODE SECTION 794) OR TITLE II OF THE AMERICANS WITH DISABILITIES ACT OF  
39 1990 (P.L. 101-336; 104 STAT. 327; 42 UNITED STATES CODE SECTIONS 12131  
40 THROUGH 12165).

41 Sec. 6. Section 15-824, Arizona Revised Statutes, is amended to  
42 read:

43 15-824. Admission of pupils of other school districts;  
44 homeless children; tuition charges; definitions

45 A. The governing board of a school district shall admit pupils from  
46 another school district or area as follows:



1           1. On the presentation of a certificate of educational convenience  
2 issued by the county school superintendent pursuant to section 15-825.

3           2. For three hundred fifty or fewer pupils, to a high school  
4 without the presentation of a certificate of educational convenience, if  
5 the pupil is a resident of a common school district within this state that  
6 is not within a high school district and that does not offer instruction  
7 in the pupil's grade. The three hundred fifty or fewer pupil limitation  
8 prescribed in this paragraph does not apply to a small isolated school  
9 district as defined in section 15-901. The school membership of such  
10 pupils is deemed, for the purposes of determining student count and  
11 providing a free and appropriate public education pursuant to the  
12 individuals with disabilities education act (20 United States Code  
13 chapter 33) and for apportionment of state aid, to be enrollment in the  
14 school district of the pupil's attendance.

15           3. To a high school without the presentation of a certificate of  
16 educational convenience if the pupil is a resident of a transporting  
17 school district that does not offer instruction in the pupil's grade.  
18 Tuition shall be charged as prescribed in subsection E of this section for  
19 each pupil who is admitted pursuant to this paragraph. For the purposes of  
20 determining student count and for apportionment of state aid, the school  
21 membership of these pupils is deemed to be enrollment in the school  
22 district of the pupil's residence.

23           B. The residence of the person having legal custody of the pupil is  
24 considered the residence of the pupil, except as provided in subsection C  
25 of this section and in section ~~[15-825, subsection SUBSECTIONS B AND C]~~  
26 [15-823, SUBSECTION C].

27           C. The current residence of a homeless pupil who does not reside  
28 with the person having legal custody of the pupil is considered to be the  
29 residence of the homeless pupil if the person having legal custody of the  
30 pupil is a resident of the United States. For the purposes of this  
31 subsection, "homeless pupil" means a pupil who has a primary residence  
32 that is:

33           1. A supervised publicly or privately operated shelter designed to  
34 provide temporary living accommodations.

35           2. An institution that provides a temporary residence for  
36 individuals intended to be institutionalized.

37           3. A public or private place not designed for, or ordinarily used  
38 as, a regular sleeping accommodation for human beings.

39           D. The school enrollment of a pupil who is a resident of this state  
40 or who is admitted to a school district under section 15-823, subsection  
41 B, C, ~~[E,]~~ [D,] ~~F[, G]~~ or ~~[H]~~ [I] is deemed, for the purpose of  
42 determining student count and for apportionment of state aid, to be  
43 enrollment in the school district of actual attendance, except as provided  
44 in section 15-825, subsection A, paragraph 1 and subsection A, paragraph 3  
45 of this section and except for pupils for whom the superintendent of  
46 public instruction is charged tuition pursuant to section 15-825,  
47 ~~[subsections B, C and] D- [G] [SUBSECTION B]~~ and section 15-976 or for

1 whom another school district is charged tuition as provided in subsections  
2 E and ~~[G]~~ [E] of this section.

3 E. If tuition is required to be charged for pupils attending school  
4 in a school district other than that of their residence, the tuition shall  
5 be determined and paid in the following manner:

6 1. The number of high school pupils for which tuition may be  
7 charged to a transporting school district is equal to the average daily  
8 membership in the district of attendance from the transporting school  
9 district for the prior fiscal year. This number may be adjusted if the  
10 transporting school district increases its revenue control limit and  
11 district support level.

12 2. The tuition for pupils attending school in a school district  
13 other than that of their residence, except pupils provided for by section  
14 15-825, ~~[subsections B, C and]~~ ~~D~~ ~~[G]~~ [SUBSECTION B] and any pupils  
15 included in the definition of child with a disability in section 15-761,  
16 shall not exceed the cost per student count of the school district  
17 attended, as determined for the current school year. Tuition for pupils  
18 included in the definition of child with a disability in section 15-761  
19 shall not exceed the actual cost of the school attended for each pupil as  
20 determined for the current year. The school district of attendance shall  
21 not include in the cost per student count a charge for transportation if  
22 no transportation is provided, and the charge for transportation shall not  
23 exceed the actual costs of providing transportation for the pupils served,  
24 as prescribed in the uniform system of financial records. The school  
25 district of attendance shall provide the school district of residence with  
26 the final tuition charge for the current year and with an estimate of the  
27 budget year's tuition charge by May 1 of the current year. The school  
28 district of residence shall pay at least one-fourth of the total amount of  
29 the estimated tuition by September 30, December 31 and March 31, and it  
30 shall pay the remaining amount it owes after adjustments are made by  
31 June 30.

32 3. Notwithstanding paragraph 2 of this subsection and subsection  
33 ~~[G]~~ [E] of this section, if two school districts enter into a voluntary  
34 agreement for the payment of tuition, the agreement shall specify the  
35 method for computing the tuition amount and the timing of the  
36 payments. The agreement shall not be longer than five consecutive  
37 years. If two school districts enter into an agreement and choose to  
38 renew the agreement, each renewal shall not be longer than five  
39 consecutive years. The agreement shall specify that a parent or legal  
40 guardian of a pupil affected by a tuition agreement entered pursuant to  
41 this section or section 15-816.01 may choose not to send the pupil or  
42 pupils to a school district or school that is a party to the agreement.

43 4. Tuition of pupils as provided in section 15-825, subsection  
44 ~~D~~ ~~[G]~~ [B] shall not exceed the excess costs for group B children with  
45 disabilities minus the amount generated by the equalization base as  
46 determined in section 15-971, subsection A for these pupils. A school  
47 district may submit to the superintendent of public instruction a record

1 of actual excess costs to educate a group B child with a disability if the  
2 costs are higher than the calculated excess costs or if a pupil has been  
3 placed in a private school for special education services. The  
4 superintendent shall determine if the additional costs will be paid, and  
5 if the costs are paid, whether the additional costs will be paid by the  
6 state or the resident district.

7       5. The amount received representing contributions to capital outlay  
8 as provided in subsection ~~[G]~~ [F], paragraph 1, subdivision (b) of this  
9 section shall be applied to the capital outlay fund or the debt service  
10 fund of the school district.

11       6. The amount received representing contributions to debt service  
12 as provided in subsection ~~[G]~~ [F], paragraph 1, subdivision (c) of this  
13 section shall be applied to the debt service fund of the school district  
14 if there is one. Otherwise the amount shall be credited to the capital  
15 outlay fund of the school district.

16       ~~[F. A school district may submit to the superintendent of public  
17 instruction a record of actual costs paid by the school district to  
18 educate a pupil who qualifies for a certificate of educational convenience  
19 under section 15-825, subsection B OR C. If the actual costs for that  
20 pupil exceed the costs per student count computed pursuant to subsection G  
21 of this section, the superintendent of public instruction shall reimburse  
22 the school district for these additional costs subject to legislative  
23 appropriation.]~~

24       ~~[G.]~~ [F.] For the purposes of this section:

25       1. "Costs per student count" means the sum of the following for the  
26 common or high school portion of the school district attended, whichever  
27 is applicable to the pupil involved, as prescribed in the uniform system  
28 of financial records:

29       (a) The actual school district expenditures for the regular  
30 education program subsection of the maintenance and operation section of  
31 the budget divided by the school district's student count for the common  
32 or high school portion of the school district, whichever is applicable.

33       (b) The actual school district expenditures for the capital outlay  
34 section of the budget as provided in sections 15-903 and 15-905 excluding  
35 expenditures for transportation equipment and buildings if no  
36 transportation is provided and expenditures for the acquisition of  
37 building sites, divided by the school district's student count for the  
38 common or high school portion of the school district, whichever is  
39 applicable.

40       (c) The actual school district expenditures for debt service  
41 divided by the school district's student count for the common or high  
42 school portion of the school district, whichever is applicable.

43       2. "Legal custody" means:

44       (a) Custody exercised by the natural or adoptive parents with whom  
45 a pupil resides.

46       (b) Custody granted by order of a court of competent jurisdiction  
47 to a person or persons with whom a pupil resides unless the primary

1 purpose for which custody was requested was to circumvent the payment of  
2 tuition as provided in this section.

3 Sec. 7. Section 15-825, Arizona Revised Statutes, is amended to  
4 read:

5 15-825. Certificates of educational convenience; issuance;  
6 effect on enrollment records; reporting  
7 requirements; posting requirements; definitions

8 A. A pupil who is precluded by distance, lack of adequate  
9 transportation facilities or a parent's or guardian's employment from  
10 attending a school in the school district or county of the pupil's  
11 residence or who resides in unorganized territory may apply to the pupil's  
12 school district of residence or, for a pupil who resides in unorganized  
13 territory, the school district of attendance for a certificate of  
14 educational convenience. If a pupil who resides in unorganized territory  
15 does not have a school district of attendance and seeks to ~~apply for a~~  
16 ~~certificate of educational convenience~~ ENROLL IN A PUBLIC SCHOOL IN THIS  
17 STATE, the pupil's parent shall ~~enroll the pupil in a school pursuant to~~  
18 ~~article 1.1 of this chapter and apply to the school district that operates~~  
19 ~~that school for a certificate of educational convenience~~ REQUEST  
20 ENROLLMENT OF THE PUPIL IN THE ADJOINING SCHOOL DISTRICT THAT IS  
21 GEOGRAPHICALLY CLOSEST TO THE PUPIL'S RESIDENCE BY SUBMITTING ONLINE  
22 ENROLLMENT PAPERWORK TO THE SCHOOL DISTRICT, BY ATTEMPTING TO ENROLL THE  
23 PUPIL IN PERSON AT A SCHOOL DISTRICT OFFICE OR AT A SCHOOL THAT IS  
24 OPERATED BY THE SCHOOL DISTRICT, OR BY REQUESTING ENROLLMENT ASSISTANCE IN  
25 A TELEPHONIC, ELECTRONIC OR IN-PERSON COMMUNICATION WITH THE SCHOOL  
26 DISTRICT OR A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT. A school  
27 district that receives ~~an application~~ A REQUEST FOR ENROLLMENT pursuant to  
28 this subsection shall submit ~~the~~ A completed CERTIFICATE OF EDUCATIONAL  
29 CONVENIENCE application FOR THE PUPIL to the county school superintendent  
30 electronically, in person or by regular mail NOT LATER THAN FIVE BUSINESS  
31 DAYS AFTER RECEIVING THE REQUEST AND ANY REQUIRED DOCUMENTATION, EXCEPT  
32 THAT A SCHOOL DISTRICT MAY SUBMIT THE APPLICATION BY REGULAR MAIL ONLY IF  
33 THE SCHOOL DISTRICT CANNOT ELECTRONICALLY SUBMIT THE APPLICATION. If it  
34 appears to the county school superintendent that it is not feasible for  
35 the pupil to attend a school in the school district or county of  
36 residence, the county school superintendent shall issue a certificate of  
37 educational convenience authorizing the pupil to attend a school in an  
38 adjoining school district or county, whether within or without this  
39 state. A SCHOOL DISTRICT THAT RECEIVES A REQUEST FOR ENROLLMENT OR AN  
40 APPLICATION FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE PURSUANT TO THIS  
41 SUBSECTION MAY NOT DELAY CHILD FIND ACTIVITIES, PARENTAL CONSENT FOR A  
42 SPECIAL EDUCATION EVALUATION OR TIMELINES UNDER 34 CODE OF FEDERAL  
43 REGULATIONS SECTION 300.301 OR 300.323 BECAUSE A CERTIFICATE OF  
44 EDUCATIONAL CONVENIENCE APPLICATION IS PROCESSING. If a certificate of  
45 educational convenience is issued as provided in this subsection, the  
46 school enrollment of a pupil is as follows:

1           1. The school enrollment of a pupil who is precluded from attending  
2 a school in this state and who must attend school in another state, when  
3 certified to the county school superintendent by the official in charge of  
4 the school attended, is deemed for the purpose of determining student  
5 count to be enrollment in the school of the county or school district of  
6 the student's residence.

7           2. The school enrollment of a pupil from unorganized territory or  
8 from another school district is deemed for the purpose of determining  
9 student count to be enrollment in the school district of actual  
10 attendance.

11           ~~[B. The county school superintendent of any county in which a pupil~~  
12 ~~is placed as described in this subsection shall issue a certificate of~~  
13 ~~educational convenience for the pupil to attend school in the school~~  
14 ~~district or adjoining school district to that in which the pupil is placed~~  
15 ~~by an A STATE PLACING agency of this state or a state or federal court of~~  
16 ~~competent jurisdiction IF THE PUPIL IS PLACED in one of the following:~~

17           ~~1. A state rehabilitation or corrective institution.~~

18           ~~2. A foster home or child care agency or institution that is~~  
19 ~~licensed and supervised by the department of child safety or the~~  
20 ~~department of health services.~~

21           ~~3. A residential facility that is operated or supported by the~~  
22 ~~department of economic security or the department of health services.~~

23           ~~4. Under the supervision of the department of juvenile corrections,~~  
24 ~~a residence pursuant to the interstate compact on juveniles.~~  
25 ~~Notwithstanding section 41-1959, the STATE placing agency, department or~~  
26 ~~institution shall provide the school district of attendance with the~~  
27 ~~necessary information to enable the district to obtain a certificate of~~  
28 ~~educational convenience pursuant to this subsection.~~

29           ~~C. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION SEEKS TO~~  
30 ~~ENROLL IN THE SCHOOL DISTRICT OR ADJOINING SCHOOL DISTRICT TO THAT IN~~  
31 ~~WHICH THE PUPIL IS PLACED, THE PUPIL'S PARENT SHALL REQUEST ENROLLMENT OF~~  
32 ~~THE PUPIL BY SUBMITTING ONLINE ENROLLMENT PAPERWORK TO THE SCHOOL~~  
33 ~~DISTRICT, BY ATTEMPTING TO ENROLL THE PUPIL IN PERSON AT A SCHOOL DISTRICT~~  
34 ~~OFFICE OR AT A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT, OR BY~~  
35 ~~REQUESTING ENROLLMENT ASSISTANCE IN A TELEPHONIC, ELECTRONIC OR IN-PERSON~~  
36 ~~COMMUNICATION WITH THE SCHOOL DISTRICT OR A SCHOOL THAT IS OPERATED BY THE~~  
37 ~~SCHOOL DISTRICT. A SCHOOL DISTRICT THAT RECEIVES A REQUEST FOR ENROLLMENT~~  
38 ~~PURSUANT TO THIS SUBSECTION:~~

39           ~~1. SHALL SUBMIT A COMPLETED CERTIFICATE OF EDUCATIONAL CONVENIENCE~~  
40 ~~APPLICATION FOR THE PUPIL TO THE COUNTY SCHOOL SUPERINTENDENT~~  
41 ~~ELECTRONICALLY, IN PERSON OR BY REGULAR MAIL NOT LATER THAN FIVE BUSINESS~~  
42 ~~DAYS AFTER RECEIVING THE REQUEST AND ANY REQUIRED DOCUMENTATION, EXCEPT~~  
43 ~~THAT A SCHOOL DISTRICT MAY SUBMIT THE APPLICATION BY REGULAR MAIL ONLY IF~~  
44 ~~THE SCHOOL DISTRICT CANNOT ELECTRONICALLY SUBMIT THE APPLICATION.~~

45           ~~2. IS RESPONSIBLE FOR ALL CHILD FIND ACTIVITIES FOR THE PUPIL.~~

1 ~~3. IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION~~  
2 ~~TO THE PUPIL IF THE PUPIL IS A CHILD WITH A DISABILITY AS DEFINED IN~~  
3 ~~SECTION 15-761.~~

4 ~~4. MAY NOT DELAY CHILD FIND ACTIVITIES, PARENTAL CONSENT FOR A~~  
5 ~~SPECIAL EDUCATION EVALUATION OR TIMELINES UNDER 34 CODE OF FEDERAL~~  
6 ~~REGULATIONS SECTION 300.301 OR 300.323 BECAUSE A CERTIFICATE OF~~  
7 ~~EDUCATIONAL CONVENIENCE APPLICATION IS PROCESSING.~~

8 ~~D. BEFORE FISCAL YEAR 2027-2028, EACH STATE PLACING AGENCY SHALL~~  
9 ~~DEVELOP A FORM TO ATTEST THAT A PUPIL IS PLACED IN ONE OF THE PLACEMENTS~~  
10 ~~DESCRIBED IN SUBSECTION B OF THIS SECTION. ON REQUEST, A STATE PLACING~~  
11 ~~AGENCY SHALL COMPLETE THE FORM FOR THE PUPIL AND PROVIDE THE COMPLETED~~  
12 ~~FORM TO THE REQUESTING PARTY. THE REQUESTING PARTY MAY SUBMIT THE~~  
13 ~~COMPLETED FORM WITH A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION~~  
14 ~~TO THE COUNTY SCHOOL SUPERINTENDENT AS EVIDENCE OF THE PUPIL'S ELIGIBILITY~~  
15 ~~FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE PURSUANT TO SUBSECTION B OR C~~  
16 ~~OF THIS SECTION.~~

17 ~~E. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION IS~~  
18 ~~PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE PUPIL~~  
19 ~~RETAINS THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,~~  
20 ~~INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR~~  
21 ~~ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION~~  
22 ~~ACT, AND THE RIGHT TO EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING~~  
23 ~~PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130 THROUGH~~  
24 ~~300.144. THE SCHOOL DISTRICT IN WHICH THE PUPIL IS PLACED IS RESPONSIBLE~~  
25 ~~FOR IDENTIFYING, LOCATING AND EVALUATING THE PUPIL AND FOR PROVIDING~~  
26 ~~EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING TO THE PUPIL.~~

27 ~~C. F. A pupil attending school under a certificate of educational~~  
28 ~~convenience issued pursuant to subsection B OR C of this section is deemed~~  
29 ~~for the purpose of determining student count to be enrolled in the school~~  
30 ~~district of attendance. The county school superintendent of any county~~  
31 ~~shall not issue a certificate of educational convenience as provided in~~  
32 ~~subsection B OR C of this section if the pupil is placed in the same~~  
33 ~~district of the pupil's parents' or legal guardians' residence or if the~~  
34 ~~pupil is placed without a court order and the pupil's parents or legal~~  
35 ~~guardians are not residents of this state.]~~

36 ~~D. [G.] [B.]~~ If a certificate of educational convenience is  
37 issued ~~[as provided in subsection B OR C of this section, or]~~ for a pupil  
38 whose parent or guardian is employed and domiciled by a state institution  
39 as prescribed by section 15-976, tuition may be charged as follows:

40 1. For group B children with disabilities:

41 (a) Who are from unorganized territory~~[;]~~ [OR] whose parent or  
42 guardian is employed by a state institution as prescribed by section  
43 15-976 ~~[or who have been issued a certificate of educational convenience~~  
44 ~~pursuant to subsection B OR C of this section]~~, the superintendent of  
45 public instruction shall reimburse the district of attendance for the  
46 excess costs as provided in section 15-824, subsection E, paragraph 4.

1 (b) Who are from another school district, the school district of  
2 residence shall reimburse the district of attendance for the excess costs  
3 as provided in section 15-824, subsection E, paragraph 4.

4 2. For pupils who are precluded from attending a school in this  
5 state and who must attend a school in another state:

6 (a) If the pupil resides in a school district in this state, the  
7 district of residence shall pay the amount charged by the district of  
8 attendance.

9 (b) If the pupil resides in unorganized territory, the  
10 superintendent of public instruction shall pay the amount charged by the  
11 district of attendance.

12 ~~E.~~ ~~[H.]~~ ~~[C.]~~ The county school superintendent who issues a  
13 certificate of educational convenience shall notify the superintendent of  
14 public instruction of the issuance of the certificate. The superintendent  
15 of public instruction shall draw a warrant in favor of the school district  
16 of actual attendance for the amount charged, whether for common or high  
17 school attendance, as provided in section 15-824.

18 ~~F.~~ ~~[I.]~~ ~~[D.]~~ The total amount of state monies that may be spent  
19 in any fiscal year by the superintendent of public instruction for  
20 certificates of educational convenience shall not exceed the amount  
21 appropriated or authorized by section 35-173 for that purpose. This  
22 section does not impose a duty on an officer, agent or employee of this  
23 state to discharge a responsibility or create any right in a person or  
24 group if the discharge or right would require an expenditure of state  
25 monies in excess of the expenditure authorized by legislative  
26 appropriation for that specific purpose.

27 ~~[J.]~~ ~~[E.]~~ EACH COUNTY SCHOOL SUPERINTENDENT SHALL:

28 1. NOT LATER THAN FIVE BUSINESS DAYS AFTER RECEIVING A CERTIFICATE  
29 OF EDUCATIONAL CONVENIENCE APPLICATION PURSUANT TO THIS SECTION, EITHER:

30 (a) ISSUE A CERTIFICATE OF EDUCATIONAL CONVENIENCE AUTHORIZING THE  
31 PUPIL TO ATTEND THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE APPLICATION  
32 AND NOTIFY THE SCHOOL DISTRICT AND THE PUPIL'S PARENT THAT THE CERTIFICATE  
33 HAS BEEN ISSUED.

34 (b) NOTIFY IN WRITING THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE  
35 APPLICATION AND THE PUPIL'S PARENT THAT THE COUNTY SCHOOL SUPERINTENDENT  
36 IS NOT ISSUING A CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR THE PUPIL.  
37 THE NOTIFICATION REQUIRED BY THIS SUBDIVISION MUST EXPLAIN THE REASON THE  
38 COUNTY SCHOOL SUPERINTENDENT IS DECLINING TO ISSUE A CERTIFICATE OF  
39 EDUCATIONAL CONVENIENCE AND INSTRUCTIONS FOR CURING DEFICIENCIES IN THE  
40 APPLICATION.

41 ~~G.~~ 2. On or before January 1 of each year, ~~each county school~~  
42 ~~superintendent shall~~ report to the department of education the total  
43 number of certificates of educational convenience that the county school  
44 superintendent issued pursuant to subsection A of this section during the  
45 previous calendar year ~~[and the total number of certificates of~~  
46 ~~educational convenience that the county school superintendent issued~~



1 ~~pursuant to subsection B OR C of this section during the previous calendar~~  
2 ~~year].~~

3 3. BEFORE FISCAL YEAR 2027-2028, DEVELOP AND MAKE PUBLICLY  
4 AVAILABLE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION FORM AND  
5 INSTRUCTIONS FOR SUBMITTING THE APPLICATION FORM. A COUNTY SCHOOL  
6 SUPERINTENDENT MAY DEVELOP AN ONLINE APPLICATION PORTAL FOR THE PURPOSES  
7 OF THIS PARAGRAPH IF THE PORTAL ALLOWS ANY PERSON WHO MAY SUBMIT AN  
8 APPLICATION PURSUANT TO THIS SECTION, INCLUDING A SCHOOL DISTRICT, A  
9 PUPIL, A PUPIL'S PARENT[, ~~A STATE PLACING AGENCY~~] OR A PUPIL'S LEGAL  
10 REPRESENTATIVE, TO SUBMIT AN APPLICATION THROUGH THE PORTAL.

11 ~~H.~~ ~~[K.]~~ ~~[E.]~~ The department of education shall maintain the  
12 reports received under subsection ~~H~~ ~~[J]~~ ~~[E]~~, PARAGRAPH 2 of this section  
13 AND SHALL POST THE REPORTS ON THE DEPARTMENT'S WEBSITE.

14 ~~[I.]~~ ~~[G.]~~ EACH SCHOOL DISTRICT IN THIS STATE THAT ADJOINS AN  
15 UNORGANIZED TERRITORY SHALL:

16 1. INCLUDE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION  
17 FORM AND INSTRUCTIONS REGARDING SUPPORTING DOCUMENTATION WITH PROOF OF  
18 RESIDENCY DOCUMENTATION REQUIREMENTS IN ENROLLMENT PACKETS.

19 2. POST ON THE SCHOOL DISTRICT'S WEBSITE BOTH OF THE FOLLOWING:

20 (a) THE FORM AND INSTRUCTIONS DESCRIBED IN PARAGRAPH 1 OF THIS  
21 SUBSECTION.

22 (b) INSTRUCTIONS FOR PARENTS WHO ELECT TO SUBMIT THE APPLICATIONS  
23 TO THE COUNTY SCHOOL SUPERINTENDENT.

24 ~~[M.]~~ ~~[H.]~~ ENROLLMENT IS GUARANTEED FOR ANY PUPIL FOR WHOM A  
25 CERTIFICATE OF EDUCATIONAL CONVENIENCE IS ISSUED PURSUANT TO THIS SECTION  
26 AND IS NOT SUBJECT TO PROGRAMMATIC CAPACITY LIMITATIONS.

27 ~~[N. THE DEPARTMENT OF EDUCATION SHALL:~~

28 ~~1. DEVELOP AND ADOPT A CLEAR, WRITTEN POLICY THAT IDENTIFIES A~~  
29 ~~SUPPLEMENTAL PROCESS FOR PROMPT RESOLUTION OF DISPUTES BETWEEN COUNTY~~  
30 ~~SCHOOL SUPERINTENDENTS, PARENTS OF PUPILS AND LOCAL EDUCATION AGENCIES,~~  
31 ~~RELATING TO ANY OF THE FOLLOWING:~~

32 ~~(a) APPLICATIONS FOR ENROLLMENT OF PUPILS PURSUANT TO THIS SECTION.~~

33 ~~(b) THE PROVISION OF SERVICES REQUIRED PURSUANT TO THIS CHAPTER AND~~  
34 ~~CHAPTER 7, ARTICLE 4 OF THIS TITLE.~~

35 ~~(c) FUNDING FOR A PUPIL'S EDUCATION PURSUANT TO THIS SECTION.~~

36 ~~(d) DENIALS OR DELAYS OF ANY OF ITEMS LISTED IN SUBDIVISION (a),~~  
37 ~~(b) OR (c) OF THIS PARAGRAPH.~~

38 ~~2. ENSURE ALL OF THE FOLLOWING:~~

39 ~~(a) THAT ANY DISPUTE ARISING UNDER THIS SECTION IS DECIDED NOT~~  
40 ~~LATER THAN TEN BUSINESS DAYS AFTER THE DISPUTE RESOLUTION PROCESS IS~~  
41 ~~INITIATED.~~

42 ~~(b) THAT A PUPIL IS ENROLLED IN A SCHOOL DISTRICT AND RECEIVES~~  
43 ~~SERVICES PURSUANT TO THIS CHAPTER AND CHAPTER 7, ARTICLE 4 OF THIS TITLE~~  
44 ~~WHILE THE DISPUTE IS PENDING.~~

45 ~~(c) THAT THE DISPUTE RESOLUTION PROCESS DOES NOT LIMIT OR DELAY A~~  
46 ~~PUPIL'S OR PARENT'S ACCESS TO THE STATE COMPLAINT PROCESS OR DUE PROCESS~~



1 ~~PROCEDURES UNDER THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20~~  
2 ~~UNITED STATES CODE SECTIONS 1401 THROUGH 1485).~~

3 ~~3. INVESTIGATE ANY COMPLAINTS THE DEPARTMENT RECEIVES THAT ALLEGE~~  
4 ~~THAT A POLITICAL SUBDIVISION OR AGENCY IS VIOLATING THIS SECTION OR~~  
5 ~~SECTION 15-768.~~

6 ~~4. ANNUALLY COMPILE A REPORT REGARDING INVESTIGATIONS PURSUANT TO~~  
7 ~~PARAGRAPH 3 OF THIS SUBSECTION AND ANY CORRECTIVE ACTIONS TAKEN IN THE~~  
8 ~~IMMEDIATELY PRECEDING YEAR AND POST THE REPORT ON THE DEPARTMENT'S~~  
9 ~~WEBSITE.]~~

10 ~~[0.] [I.] [SUBSECTIONS] [SUBSECTION] A [AND C] OF THIS SECTION~~  
11 ~~[DO] [DOES] NOT PRECLUDE A PUPIL, A PUPIL'S PARENT, [A STATE PLACING~~  
12 ~~AGENCY,] A PUPIL'S LEGAL REPRESENTATIVE OR ANY OTHER INTERESTED PARTY FROM~~  
13 ~~SUBMITTING AN APPLICATION FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR~~  
14 ~~THE PUPIL TO THE COUNTY SCHOOL SUPERINTENDENT.~~

15 ~~[P.] [J.] FOR THE PURPOSES OF THIS SECTION:~~

16 1. "CHILD FIND" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-768.

17 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING  
18 PRESCRIBED IN SECTION 15-768.

19 3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.

20 ~~[4. "STATE PLACING AGENCY" HAS THE SAME MEANING PRESCRIBED IN~~  
21 ~~SECTION 15-1181.]~~

22 ~~[5.] [4.] "UNORGANIZED TERRITORY" MEANS A GEOGRAPHIC AREA THAT IS~~  
23 ~~NOT LOCATED WITHIN THE BOUNDARIES OF ANY SCHOOL DISTRICT.~~

24 Sec. 8. Section 15-944, Arizona Revised Statutes, is amended to  
25 read:

26 15-944. Base revenue control limit

27 A. The base revenue control limit for each school district for  
28 fiscal year 1980-1981 is computed as follows:

29 1. Add the amounts in the fiscal year 1979-1980 budget effective  
30 May 15, 1980 for general operating and special education.

31 2. Subtract the following budgeted revenues from the sum obtained  
32 in paragraph 1 of this subsection:

33 (a) Tuition paid for attendance of nonresident pupils.

34 (b) State assistance as provided in section 15-976.

35 (c) Special education revenues as provided in section 15-825,  
36 subsection ~~D~~ ~~[C]~~ ~~[B]~~ and section 15-1204.

37 (d) Proceeds from the sale or lease of school property as provided  
38 in section 15-1102.

39 3. Add the increase in the base support level from fiscal year  
40 1979-1980 to fiscal year 1980-1981 to the difference obtained in paragraph  
41 2 of this subsection.

42 B. The equalization factor for each school district is computed as  
43 follows:

44 1. Divide the sum obtained in subsection A, paragraph 3 of this  
45 section by the base support level for fiscal year 1980-1981.

46 2. Subtract 1.0 from the quotient obtained in paragraph 1 of this  
47 subsection to obtain the equalization factor.

- 1 C. The revenue variation factor for each fiscal year is as follows:  
2 1. For fiscal year 1981-1982, 0.80.  
3 2. For fiscal year 1982-1983, 0.60.  
4 3. For fiscal year 1983-1984, 0.40.  
5 4. For fiscal year 1984-1985, 0.20.

6 D. The base revenue control limit for each school district during  
7 the five years in which the equalization plan is in operation is computed  
8 as follows:

9 1. Multiply the equalization factor by the revenue variation factor  
10 for the applicable year. Beginning with fiscal year 1983-1984 if the  
11 resulting product is less than negative 0.08, use negative 0.08 for  
12 computation purposes as provided in paragraph 2 of this subsection.

13 2. Multiply the product obtained in paragraph 1 of this subsection  
14 by the base support level for the applicable year.

15 3. Add the base support level for the applicable year to the  
16 product obtained in paragraph 2 of this subsection.

17 E. For fiscal year 1985-1986 and each fiscal year thereafter, the  
18 base revenue control limit equals the base support level for the same  
19 fiscal year.

20 Sec. 9. Section 15-947, Arizona Revised Statutes, is amended to  
21 read:

22 15-947. Revenue control limit; district support level;  
23 general budget limit; unrestricted total capital  
24 budget limit; district additional assistance limit

25 A. The revenue control limit for a school district is equal to the  
26 sum of the base revenue control limit determined in section 15-944 and the  
27 transportation revenue control limit determined in section 15-946.

28 B. The district support level for a school district is equal to the  
29 sum of the base support level determined in section 15-943 and the  
30 transportation support level determined in section 15-945.

31 C. The general budget limit for each school district, for each  
32 fiscal year, is the sum of the following:

33 1. The maintenance and operations portion of the revenue control  
34 limit for the budget year.

35 2. The maintenance and operation portion of the following amounts:

36 (a) Amounts that are fully funded by revenues other than a levy of  
37 taxes on the taxable property within the school district, as listed below:

38 (i) Amounts budgeted as the budget balance carryforward as provided  
39 in section 15-943.01.

40 (ii) Tuition revenues for attendance of nonresident pupils.

41 (iii) State assistance as provided in section 15-976.

42 (iv) Special education revenues as provided in section 15-825,  
43 subsection ~~D~~ [G] [B] and section 15-1204.

44 (v) Title VIII of the elementary and secondary education act of  
45 1965 assistance determined for children with disabilities, children with  
46 specific learning disabilities, children residing on Indian lands and  
47 children residing within the boundaries of an accommodation school that is

1 located on a military reservation and that is classified as a heavily  
2 impacted local educational agency pursuant to 20 United States Code  
3 section 7703 as provided in section 15-905, subsections K and O.

4 (vi) Title VIII of the elementary and secondary education act of  
5 1965 administrative costs as provided in section 15-905, subsection P.

6 (vii) State assistance for excess tuition as provided in section  
7 15-825.01.

8 (viii) Transportation revenues for attendance of nonresident  
9 pupils.

10 (b) Amounts approved pursuant to an override election as provided  
11 in section 15-481 for the applicable fiscal year.

12 (c) Amounts authorized by the county school superintendent pursuant  
13 to section 15-974, subsection B.

14 (d) Expenditures for complying with a court order of desegregation  
15 as provided in section 15-910.

16 (e) Interest on registered warrants or tax anticipation notes as  
17 provided in section 15-910.

18 (f) Amounts budgeted for a jointly owned and operated career and  
19 technical education and vocational education center as provided in section  
20 15-910.01.

21 3. The maintenance and operations portion of district additional  
22 assistance for the budget year.

23 4. Any other budget item that is budgeted in the maintenance and  
24 operation section of the budget and that is specifically exempt from the  
25 revenue control limit or district additional assistance.

26 D. The unrestricted capital budget limit, for each school district  
27 for each fiscal year, is the sum of the following:

28 1. The federal impact adjustment as determined in section 15-964  
29 for the budget year.

30 2. Any other budget item that is budgeted in the capital outlay  
31 section of the budget and that is specifically exempt from district  
32 additional assistance.

33 3. The unrestricted capital portion of the amounts contained in  
34 subsection C of this section.

35 4. The unexpended budget balance in the unrestricted capital outlay  
36 fund from the previous fiscal year.

37 5. The net interest earned in the unrestricted capital outlay fund  
38 from the previous fiscal year.

39 Sec. 10. Section 15-976, Arizona Revised Statutes, is amended to  
40 read:

41 15-976. Assistance for school districts for children whose  
42 parents are employed by certain state institutions;  
43 expenditure limitation

44 A. The superintendent of public instruction shall assist school  
45 districts in educating children whose parents or legal guardians are  
46 employed by and domiciled at the following state institutions and  
47 stations: the state hospital, the Arizona state schools for the deaf and

1 the blind, intellectual disability centers, port of entry inspection  
2 stations and institutions and facilities maintained by the state  
3 department of corrections. The school enrollment is deemed for the  
4 purpose of determining student count to be enrollment in the school  
5 district of actual attendance. The assistance shall be by payment of  
6 tuition as follows:

7 1. For group B children with disabilities, as provided in section  
8 15-825, subsection ~~B~~ [E] [B].

9 2. For children other than group B children with disabilities, the  
10 costs per student count as prescribed in section 15-824, subsection [E]  
11 [E] minus the amount generated by the equalization base as determined in  
12 section 15-971, subsection A for those pupils, except that the tuition for  
13 any pupil shall not exceed an amount equal to ~~seven thousand dollars~~  
14 \$7,000 minus the amount generated by the equalization base as determined  
15 in section 15-971, subsection A.

16 B. Claims for such payments shall be made by the school districts  
17 through the county school superintendent to the superintendent of public  
18 instruction.

19 C. The total amount of state monies that may be spent in any fiscal  
20 year by the superintendent of public instruction pursuant to subsection A  
21 of this section shall not exceed the amount appropriated or authorized by  
22 section 35-173 for that purpose. This section ~~shall~~ DOES not ~~be construed~~  
23 ~~to~~ impose a duty on an officer, agent or employee of this state to  
24 discharge a responsibility or ~~to~~ create any right in a person or group if  
25 the discharge or right would require an expenditure of state monies in  
26 excess of the expenditure authorized by legislative appropriation for that  
27 specific purpose.

28 <<Sec. 11. Section 15-1185, Arizona Revised Statutes, is amended to  
29 read:

30 15-1185. School district responsibility: integration into a  
31 school

32 A. For a child who is placed in a private residential facility  
33 pursuant to this article, the home school district is responsible for  
34 reviewing the child's educational progress and planning for integrating  
35 the child into a public school when it is educationally appropriate.

36 B. The private residential facility and the state placing agency  
37 shall work with the home school district for purposes of integrating the  
38 child into a public school when it is educationally appropriate.

39 C. If a child who has been placed in a private residential facility  
40 for care, safety or treatment reasons attends a public school in other  
41 than the home school district on either a part-time or full-time basis,  
42 the residential education voucher terminates ~~[and the following apply:~~

43 ~~1. The school district of attendance must apply for a certificate~~  
44 ~~of educational convenience as provided in section 15-825, subsection B].~~

45 ~~[2.]~~ If the child attends school in the residential facility on a  
46 part-time basis, the school district of attendance must ~~[apply for a~~  
47 ~~certificate of educational convenience and]~~ either provide direct services

1 in the residential facility or contract with the residential facility for  
2 that portion of educational services that the private residential facility  
3 is to provide.

4 D. If a child who requires residential special education placement  
5 is placed outside of the home school district and is able to attend a  
6 nonresidential school on a part-time basis, the residential special  
7 education placement voucher terminates. The school district of attendance  
8 shall ~~[apply for a certificate of educational convenience and]~~ pay a  
9 prorated tuition amount to the private residential facility.>>

10 Enroll and engross to conform

11 Amend title to conform

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